

25STCV33315 25STCV33315

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-09-24
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Case Number: 25STCV33315 Hearing Date: September 24, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

MEKONNEN LEMLEM,

Plaintiff,

vs.

METRO BUS OPERATIONS,

Defendant.

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CASE NO.: 25STCV33315

[TENTATIVE] ORDER SUSTAINING DEFENDANT'S
DEMURRER

Dept. 506

8:30 a.m.

September 24, 2026

On

November 14, 2025, Plaintiff Mekonnen Lemlem filed this action against Defendant
Metro Bus Operations.

On

May 4, 2026, Defendant filed a demurrer.

DISCUSSION

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif., Inc.

(1993) 14 Cal.App.4th 612, 616.)

The

complaint uses a Judicial Council form for an action based in personal injury. The Court agrees that "Plaintiff has merely filed a Judicial Council form face page without attaching any necessary cause of action pages to allege duty, breach, causation, or damages. The total absence of any cause of action pages makes it impossible for Defendant to ascertain the nature of the claims asserted or the specific acts or omissions for which Defendant is allegedly liable." (Demurrer at p. 3.)

Item

10 on page 3 of the form complaint states, "The following causes of action are attached and the statements above apply to each (each complaint must have one or more causes of action attached)." Plaintiff checked the box for General Negligence. At Item 11, Plaintiff selected that she suffered "hospital and medical expenses" and "general damage." There are no additional attached pages.

"The

Judicial Council pleading forms have simplified the art of pleading, and have made the task of drafting much easier. Nevertheless, in some cases more is required than merely placing an 'X' in a box. [Citation.]" (People ex rel. Dept. of Transportation v. Superior Court (1992) 5 Cal.App.4th 1480, 1484.)

The

Complaint is so uncertain that Defendant cannot reasonably respond to it.

CONCLUSION

The

demurrer is SUSTAINED with 30 days' leave to amend.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 24th day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court